

CONTRACT MANUFACTURING AND PACKAGING AGREEMENT

AGREEMENT
BETWEEN
BUZZCAF PVT LTD
AND
THE BEANSTER COMPANY

This AGREEMENT ("Agreement") is entered into on this 3rd day of July 2022:

AMONG:

- 1) "The Beanster Company", a company incorporated under the laws of India and having its administrative office at Block no 4, Ward no 5, Mana Camp, Raipur, Chhattisgarh, 492015, India (hereinafter referred to as "Manufacturer/Re-packer", which expression shall, unless repugnant to the context or meaning thereof, be deemed to include its successors and permitted assigns).
- 2) Buzzcaf Pvt Ltd., a company incorporated under the laws of India and having its registered office at Keshavnagar Road, Shankar Nagar Pune, Maharashtra, 411036 (hereinafter referred to as "Customer", which expression shall, unless repugnant to the context or meaning thereof, be deemed to include its successors and permitted assigns).

Definition and Interpretation:

- 1) Company: The Beanster Company
- 2) Customer: Buzzcaf Pvt Ltd

APPOINTMENT

Buzzcaf Pvt Ltd agrees and appoint The Beanster Company to fulfil the manufacturing and re-packing requirement of the coffee products catalogued by the Buzzcaf Pvt Ltd.

Below are the terms and conditions agreed by both the parties and any dispute will be dealt under the law and in the court of Chhattisgarh.

QUOTATIONS AND PRICES

All quotations submitted and all orders accepted by the company are subject to below conditions.

- 1) Prices for the goods shall be those submitted and agreed by both the parties and is subjected to change as per market spot price and the company will not change any price without approval and acceptance by the customer. The quoted price for the goods is exclusive of VAT/GST/TAX.
- 2) Company is not responsible for any change in the transportation/shipping/logistics cost agreed at the time of order acceptance.

PAYMENT

All payments to be received by the company in advance with the below bifurcation:

- 1) Full or a minimum of 50% payment as per the order invoice needs to be paid by the customer to company for order acceptance and order processing. All/remaining payment to be completed by the customer at the time of dispatch or within 5 days of the order dispatch readiness, failing to do so will incur a penalty of 0.5% per day on the unsettled amount.
- 2) New orders will be accepted only after payment clearance of preceding or open orders.
- 3) Payment to be received by the company within 7 days of the date of the issuance of the quotation, failing to do so will result in the cancelation of quotation without any intimation to customer.

DELIVERY

- 1) Company will communicate the lead time to make the order ready for dispatch at the time of order acceptance.
 - 2) While the company will make every effort to effect delivery in accordance with the quoted dates or periods, no guarantee is implied as to delivery dates nor will the company be liable for any loss or damage arising from delays in delivery howsoever caused and whether with respect of the whole or part of the goods order delay in deliveries in instalments.
 - 3) Where a contract involves more than one delivery these conditions shall apply to each and every delivery.
 - 4) In the absence of specific delivery instructions from the customer and the company will deliver the goods by the method which in its opinion is most suitable.
 - 5) In case of pick-up/logistics controlled by customer, order should be picked-up by the customer/logistics courier partner within seven working days of intimation of order ready, failing to do so will incur a penalty of 500 INR per day.
 - 6) The company shall inform the customer by itself if there is any interruption of supply foreseen, failing to do so prior the order received from customer will incur a penalty upto 5% of the order value reported.
- In case the penalty is accepted by the company the order items and order value cannot be changed by customer side.

OWNERSHIP AND RISK

The property in respect of the goods and the risk of loss or damage in respect thereof shall pass to the customer on the despatch of the goods from the company's or its carrier's premises.

Claims and Liability

- 1) The Company reserves the right for not disclosing details about the source of raw material or manufacturing parties of any material used to complete the manufacturing/re-packing of the products.
- 2) Product labelling w.r.t to manufacturing details, food and other licenses, to be discussed and agreed separately and is not part of this agreement.

- 3) The company shall not be liable for any direct loss or damage attributable to defects in the goods or in respect of conditions or warranties whether express or implied by statute or at common law, which have not been confirmed by the company in writing.
- 4) The company shall not be liable for any consequential loss or damage attributable to defects in the goods or in respect of conditions or warranties whether express or implied by statute or common law, which have not been confirmed by the company in writing.
- 5) Without prejudice to the foregoing goods represented by the customer to be defect will, returned to the company as defective, be repaired as originally as ordered or at the option of the company the net cost will be credited to the customer's account. Note, however, that Cut Price limited products which have been used should not be replaced free of charge without consultation with the company as credit cannot necessarily be guaranteed.
- 6) Any complaint of damages, short delivery or loss in transit must be made within 3 days of delivery to the customer. In case of a non- delivery a claim, in writing, must be made to the company within 10 days of the date of its invoice.

FORCE MAJEURE

No liability will be accepted for any failure or delay in performance is wholly or particularly delayed, hindered, or prevented by circumstances which is not within the company's immediate control including but without limiting the generality of the foregoing. Strikes, lock outs, labour disputes, fire, accidents, breakdown of plant, delay or interruption of transport, unavailability of materials, wars, hostilities, or any local or national emergency, compliance with any order or request of a government or other public authority or force majeure of any kind.

IN WITNESS WHEREOF, the Parties have entered into this Agreement the day and year first above written.

SIGNED and DELIVERED for and on behalf of
Buzzcaf Pvt Ltd

Name :

Title :

SIGNED and DELIVERED for and on behalf of
The Beanster Company

Name : ANJANA MANDAL

Title : MD AMandal.